

24CMCV00840 24CMCV00840

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-15

Motion: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 24CMCV00840 Hearing Date: July 15, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

GEORGIA LOVE,

Plaintiff,

vs.

LULA

COLLINS,

Defendant.

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CASE NO: 24CMCV00840

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

Dept.

A

DATE:

July 15, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 06/05/2024

TRIAL:

08/24/2026

MOVING

PARTY: Defendant Lula Collins

RESPONDING

PARTY: Plaintiff Georgia Love

Plaintiff Georgia Love

("Plaintiff") alleges that defendant Lula Collins ("Defendant") negligently owned, maintained, managed, and operated some unspecified premises in a manner so as to cause Plaintiff personal injury.

Defendant

moves for summary judgment on the complaint. Defendant contends that the allegations in the complaint arise from unforeseeable third-party criminal activity and that therefore Defendant did not owe Plaintiff a duty to protect her from her injury. In opposition, Plaintiff contends that the proximate cause of her injury was the defective physical condition of the property, rather than third-party criminal activity.

The purpose of a motion

for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).)

"Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact."

(Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Defendant

contends that, based on Plaintiff's discovery responses, Plaintiff's injury arose from unforeseeable third-party criminal conduct. In support of this contention, Defendant cites to Plaintiff's responses to Special Interrogatories, Set One, Nos. 1 and 2, in which Plaintiff states: "While inside of the home smelled gas and fire was coming from upstairs and heard gunfire. I attempted to leave the apartment and fell on the heighten floor where the tile and carpet began. I got injured due to gunfire in apartment above Plaintiff. The gas line broke causing gas to leak into her apartment and the apartment fire. Defendant put Plaintiff in danger due to Defendant's tenants." (Giudice-Hu Decl., Ex. 3.) However, the questions prompting this responses were not provided, such that the court cannot clearly determine that the responses represent that gunfire was the sole proximate cause of Plaintiff's injury. Additionally, irrespective of what the questions were and although Plaintiff's discovery response states that the gunfire was a cause of Plaintiff's injury, it is not clear from this response that the gunfire was the sole cause of Plaintiff's injury, as Plaintiff states that she fell on the "heighten floor where the tile and carpet began." (Guidice-Hu Decl., Ex. 3.)

Furthermore,

Defendant also cites to Plaintiff's deposition, in which she states that she fell and was injured after encountering a nail sticking out of the carpet. (Pltf. Depo. 53:12 – 53:25.) It is therefore not clear from Plaintiff's discovery responses that the sole cause of Plaintiff's injury was gunfire arising from unforeseeable third-party criminal conduct. A review of the complaint also does not show that the sole cause of Plaintiff's injury was third-party criminal conduct, as the complaint does not include any factual allegations.

Because the

motion does not address all of plaintiff's claims, and because a motion for summary judgment must dispose of the entire action and all claims, the court will therefore deny Defendant's motion for summary judgment. Based on the foregoing, the court DENIES Defendant's motion for summary judgment.

Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: July 15, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court